

HOUSE No. 917

The Commonwealth of Massachusetts

PRESENTED BY:

Mike Connolly and David M. Rogers

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act reducing packaging waste.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>1/10/2025</i>
<i>David M. Rogers</i>	<i>24th Middlesex</i>	<i>1/10/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>5/23/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>9/8/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>8/7/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>10/20/2025</i>

HOUSE No. 917

By Representatives Connolly of Cambridge and Rogers of Cambridge, a petition (accompanied by bill, House, No. 917) of Mike Connolly and David M. Rogers for legislation to reduce packaging waste. Environment and Natural Resources.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 770 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act reducing packaging waste.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 The General Laws are hereby amended by inserting after chapter 21O the following
2 chapter:

3 CHAPTER 21P: The Sustainable Food Service Ware Act.

4 Section 1. Definitions

5 “Compostable” refers to (i) a product comprised of wood or fiber-based substrate only; or
6 (ii) bioplastic materials that meet the American Society for Testing and Materials International
7 Standards D6400 or D6868, as those standards may be amended, or international equivalents.
8 ASTM D6400 is the specification for plastics designed for compostability in municipal or
9 industrial aerobic composting facilities. D6868 is the specification for aerobic compostability of

plastics used as coatings on a compostable substrate. A bioplastic product must use a logo indicating the product has been certified by a recognized third-party independent verification body as meeting the ASTM standard specification; and displays the word "compostable," where possible indicating the product has been tested by a recognized third-party independent body and meets the ASTM standard specification. Fiber-based products or product components would need to be (a) free from any organic fluorine substances that a manufacturer has intentionally added in any amount; and (b) not contain total organic fluorine at or above 100 parts per million as measured by an independent laboratory.

“Disposable food service ware” All food and beverage containers, bowls, plates, trays, cartons, cups, lids, straws, stirrers, forks, spoons, knives, film wrap, and other items designed for one-time or non-durable uses on or in which any food vendor directly places or packages prepared foods or which are used to consume foods. This includes, but is not limited to, service ware for takeout foods and leftovers from partially consumed meals prepared at food establishments.

“Food establishment” An operation that stores, prepares, packages, serves, vends, or otherwise provides food for human consumption. This includes without limitation restaurants and food trucks.

“Recyclable Material” that can be sorted, cleansed, and reconstituted using the local municipality’s regular year-round collection program for the purpose of using the altered form in the manufacture of a new product. Regular year-round collection means either the municipal curbside pickup or else a municipal transfer station in communities that do not have curbside pickup. All recyclable plastic material must be identified by its plastic resin code in a visible

manner on the food service ware. "Recycling" does not include burning, incinerating, converting, or otherwise thermally destroying solid waste.

“Reusable Products” Those that will be used more than once in its same form by a food establishment. Reusable food service ware includes: tableware, flatware, food or beverage containers, packages or trays, such as, but not limited to, soft drink bottles and milk containers that are designed to be returned to the store or distributor that provided the take-out containers. Reusable materials include aluminum and glass. Reusable also includes cleanable durable containers, packages, or trays used on-premises or returnable containers brought back to the food establishment.

Section 2. (a) Except as provided in this section on and after January 1, 2027, all retail food establishments will use food service ware that is compostable, recyclable, or reusable for any food prepared or packaged on premises.

(b) The Department of Environmental Protection shall promulgate regulations with regard to the enforcement of this chapter.